

Anti-Money Laundering Law

I. Definitions

Article 1

The following terms and phrases – wherever mentioned in this Law – shall have the meanings assigned thereto unless the context requires otherwise:

- 1- **The law:** the Anti-Money Laundering law.
- 2- **The regulation:** the Implementing Regulation of this law.
- 3- **Funds:** Assets, economic resources or properties of any value or type, however acquired, whether material or immaterial, movable or immovable, tangible or intangible, along with documents, deeds, transfers, letter of credits and instruments of any form, whether inside or outside the Kingdom. This include electronic or digital systems and bank credits that evidence ownership or interest therein, also all types of commercial papers , securities, or any interest, profit or other income generated from such funds.
- 4- **Predicate Offense:** Any committed act within the KSA constituting an offense punishable by Sharia or statutory law, or any act committed outside the Kingdom if it constitutes a crime according to the laws of the State where it was committed and would have constituted an offense under the Sharia or statutory laws of the Kingdom had it been committed therein.
- 5- **Proceeds of crime:** the funds directly or indirectly obtained or acquired from or through the commission of a predicate offense, whether inside the Kingdom or outside, including any funds transferred or converted wholly or partially into other type of funds.
- 6- **Instrumentalities:** Anything prepared, used, or intended to use, in any form to commit a crime of crimes stipulated in the law.
- 7- **Financial Institution (FI):** Any conduct as a business one or more of the financial activities or operations specified in the Implementing Regulation of this Law for or on behalf of a customer.
- 8- **Designated Non-Financial Businesses or Profession (DNFBP):** Any conducted of any commercial or professional activities as specified in the Implementing Regulation.
- 9- **Non-profit Organizations (NPO):** Any non-profit organization entity that – legally authorized, to collects, receives or disburses funds for charitable, religious, cultural,

educational, social or cooperative purposes or for any other purposes.

- 10- Provisional Seizure:** Temporary ban on the transport, transfer, exchange, conversion, disposal, or movement of funds, and temporary possession, pursuant to an order issued by a competent court or authority.
- 11- Confiscation:** Permanent expropriation and deprivation of funds, Proceeds of crime, **or instrumentalities** pursuant to an order issued by a competent court or authority.
- 12- Supervisory Authority:** The authority with responsibility to monitor the compliance by FIs, DNFBPs, and NPOs with the requirements under this Law, its Regulation or any relevant decision or instructions.
- 13- Competent Authority:** Any administrative authority, law-enforcement authority or supervisory authority.
- 14- Bearer Negotiable Instruments:** Monetary instruments in bearer form, such as cheques, promissory notes, and money order, that are in bearer form or endorsed or made out to a fictitious payee, or otherwise that are in such form that title thereto passes upon delivery, or incomplete instruments signed but with the payee's name omitted.
- 15- Beneficial owner:** Any natural person who ultimately owns or exercises direct or indirect control over a customer or on whose behalf a transaction is being conducted, including on the FIs or DNFBPs or NPOs or any other legal person.
- 16- Customer:** Any person who conduct or intend to conduct any activities as stipulated in the Implementing Regulation with the FIs, DNFBPs.
- 17- Business relationship:** Any relationship with a continuing nature, which is established between any of FIs and DNFBPs and its clients related to the activities or services the FIs and DNFBPs provide to them.
- 18- Shell Bank:** A bank that is incorporated or licensed in a country in which it has no physical presence and that is unaffiliated with a regulated financial group that is subject to regulation and supervision.
- 19- Wire Transfer:** A financial transaction carried out on behalf of an originator through a financial institution with the view to making an amount of funds available to a beneficiary at another financial institution, irrespective of whether the originator and the beneficiary are the same person.
- 20- Due Diligence Measures:** The process of obtaining or verifying information on a customer or beneficial owner to enable the FIs or DNFBPs to assess the extent to which the customer exposes it to a range of risks.

II. Criminal Acts

Article 2

It shall be considered to have committed a money laundering offence who conduct any of the following acts:

- 1- Converts or transfers or conduct any transaction on funds that the person knows are proceeds of crime for the purpose of disguising or concealing the illegitimate origin of the funds, or to help a person involved in the commission of the predicate offense that generated the funds to evade the

legal consequences for his/her acts;

2- Acquires, possesses or uses funds that the person knows are proceeds of crime or from illegal source;

3- Conceals or disguises the true nature, source, movement, ownership, place, disposition, or manner of disposition, or rights with respect to funds that the person knows are proceeds of crime;

4- the attempt to conduct any stated acts in Sup (1), (2), (3) in this article, or participation in by means of agreement, or providing assistance, or abetting, or providing counseling, advice, or

facilitation, or collusion, cover-up or the attempt to commit any of the acts provided for in this Article.

Article 3

Legal person shall be criminally liable for money laundering if any act clarified in Article 2 was committed in its name or to its account. Criminal liability of a legal person shall not exclude criminal liability of the chairmen, members of boards of directors, owners, employees, authorized representatives, auditors or hired staff, or any other natural person who acted in the legal entity's name or for its credit.

Article 4

1- A money laundering offence shall be deemed a separate offence from the predicate offense, and a conviction for the predicate offense shall not be necessary for a conviction for money laundering or to establish that funds are proceeds of crime, whether the crime was perpetrated in the Kingdom or abroad.

2- Intent, knowledge or purpose required as elements of a money laundering offence may be inferred from objective factual circumstances of the case.

III. Preventive Measures

Article 5

Financial Institutions (FIs), Designated Non-Financial Businesses and Professions (DNFBPs) shall identify, assess, and document their money laundering risks and keep it up to date, taking into account a wide range of risk factors, including those relating to its customers, countries or geographic areas, products, services, transactions and delivery channels, and provide risk assessment reports to the supervisory authorities upon request. The risk assessment under this Article shall include an assessment, prior to their use, of the risks associated with new products, business practices and technologies.

Article 6

A financial institution shall not keep or open an anonymous accounts or an accounts in obviously fictitious names, or numbered accounts.

Article 7

FIs and DNFBPs shall:

- 1- Apply due diligence measures to their customers and the Implementing Regulation shall set forth the instances in which such measures shall be taken and the types of measures to be taken.
- 2- Determine the extent of due diligence measures based on the risks relation to a customer or business relationship. Where a higher risk of money laundering was identified, they shall apply enhanced due diligence measures.

Article 8

FIs and DNFBPs shall use appropriate systems to determine whether a customer or beneficial owner is or has become assignee with a prominent public function in the Kingdom or a foreign country; or with a senior management position in an international organization and if so, apply additional measures as prescribed by the Implementing Regulation.

Article 9

- 1- Before entering into a cross-border correspondent relationship, financial institutions shall apply appropriate risk mitigation measures as prescribed by the Implementing Regulation, and shall satisfy themselves that the respondent institution does not permit their account to be used by a shell bank.
- 2- Financial institutions shall not enter into or continue a correspondent relationships with a shell bank or a respondent institution that permits its account to be used by a shell bank.

Article 10

- 1- Financial institutions provide wire transfer activities shall obtain information on the originator and beneficiary and ensure that such information is kept with the wire transfer or related message throughout the payment chain. A financial institution that is unable to obtain required originator or beneficiary information shall not permit the execution of the wire transfer.
- 2- A financial institution shall record all originator and beneficiary information and keep the records, documents, data, and files in accordance with Article 12.
- 3- A financial institution shall comply with all measures on wire transfers as set out in the Implementing Regulation.

Article 11

- 1- FIs and DNFBPs shall apply enhanced due diligence measures proportionate to the risks involving business relationships and transactions with a person from a country that was identified as high risk by the FI or DNFBP or the Anti-Money Laundering Permanent Committee.
- 2- FIs and DNFBPs shall apply the countermeasures prescribed by the Anti-Money Laundering Permanent Committee with respect to high risk countries.

Article 12

- 1- FIs and DNFBPs shall, for all domestic or international financial transactions as well as commercial and monetary transactions, keep all records and documents for a period of no less than ten years from the date of concluding the transaction or closure of account.
- 2- FIs and DNFBPs shall keep all records obtained through due diligence measures, account files and business correspondences and copies of personal identification documents,

including the results of any analysis undertaken, for at least ten years after the business relationship has ended or a transaction was carried out for a customer is not in an established business relationship.

- 3- In specific cases, the Public Prosecution may oblige FIs and DNFBPs to extend the record keeping period for as long as required for the purpose of a criminal investigation or prosecution.
- 4- Records shall be sufficient to permit reconstruction of transactions and shall be maintained in a manner so that they can be readily made available to competent authorities upon request.

Article 13

FIs and DNFBPs shall:

- 1- Monitor and scrutinize transactions, document and data on an ongoing basis to ensure that they are consistent with the reporting entity's knowledge of the customer, the customer's commercial activities and risk profile, and where necessary the customer's source of funds.
- 2- Examine any complex and unusual large transaction, and any unusual pattern of transactions that has no clear economic or legal objective.
- 3- Where the risks of money laundering are higher, the FI and DNFBP shall perform enhanced due diligence where the ML/TF risks are higher and increase the level and nature of monitoring of the relevant business relationship to determine whether the transaction is unusual or suspicious.
- 4- Keep records for a period of ten years and make them available to competent authorities upon request.

Article 14

1- FIs and DNFBPs shall:

- A- Have in place and effectively implement internal policies, procedures and controls against money laundering aimed at managing and mitigating any risks identified as clarified in Article 5. The policies, procedures and controls shall be proportionate to the nature and size of the FI and DNFBP's business and shall be approved by senior management. FI and DNFBP shall review and enhance them as needed.
- 8- Apply its internal policies, procedures and controls said in (A) of this Article, to all of its branches and majority-owned subsidiaries.
- 2- The Implementing Regulation shall specify the matters that must be addressed in the internal policies, procedures and controls under (1/A) in this Article for Anti-Money Laundering.

Article 15

FIs, DNFBPs, and NPOs including the attorneys and any person providing legal or accounting type services, that suspects or has reasonable grounds to suspect that funds or parts thereof, regardless of their amounts, are proceeds of crime or are related to money laundering or that such funds will be used in acts of money laundering, including attempts to initiate such a transaction, shall Promptly and directly take the following measures:

- 1- Report such transaction to the General Directorate of Financial Intelligence; and provide a

detailed report including all available data and information on such transaction and relevant parties.

- 2- Promptly and fully respond to requests from the Directorate for additional information.

Article 16

- 1- FIs, DNFBPs, and NPOs as well as their Members of Board of Directors, directors, Members of its executive or supervisory management, and employees are prohibited from disclosing to a customer or any other person the fact that a report under this Law or related information will be, is being or has been submitted to the Directorate, or that a criminal investigation is being or has been carried out. This shall not preclude disclosures or communications between directors and employees or communications with lawyers or competent authorities.
- 2- FIs, DNFBPs, and NPOs as well as their Members of Board of Directors, directors, Members of its executive or supervisory management, and employees shall be protected from any liability toward the reported if they report their suspicions to the Directorate in good faith.

IV. General Directorate of Financial Intelligence

Article 17

The General Directorate of Financial intelligence shall be under the oversight of the President of the State Security, and shall enjoy adequate operational independence. It shall act as a national central agency to receive suspicious transaction reports, or other information or reports relating to money laundering, predicate offenses or proceeds of crime as provided for by this Law and its Implementing Regulations, to analyze such reports and information, and to disseminate the results of its analysis to competent authorities, either spontaneously or upon request. The President of the State Security shall determine the organizational structure of the Directorate and the Implementing Regulations shall identify its governance, mandate and its methods of operation.

Article 18

- 1- The Directorate is authorized to obtain any additional information that the Directorate deems necessary to properly carry out its analysis. In cases where a financial institution has not submitted a report under Article 15 of this law, or the Directorate's request does not relate to a report submitted by the requested financial institution, the Directorate shall request to provide the requested information only through the supervisory authority. The FIs, DNFBPs and NPOs shall provide what has been requested promptly.
- 2- The Directorate may obtain any financial, administrative or legal information and any relevant information collected or maintained by or on behalf of public authorities that it considers is necessary to carry out its function as per the legal provisions set out.

Article 19

The Directorate may on its own motion or by request, disseminate information and the results of its analysis to relevant competent authorities when there are grounds to suspect that a transaction is

related to money laundering or a predicate offence. The Directorate shall have the authority to carry out its function freely, including the autonomous decision to conduct analysis, request, disseminate or forward specific information.

Article 20

Every person with duties for or within the Directorate is required to keep confidential any information obtained within the scope of these duties, even after the cessation of those duties.

Article 21

Information disclosed to the Directorate may be exchanged with other competent authorities. The Directorate may enter into an agreement or arrangement with competent authorities to facilitate cooperation and information exchange.

Article 22

1- The Directorate may, , seek from or share with a foreign counterpart any information it has received in the course of its functions, and the Directorate may enter into an agreement or arrangement as per the legal procedures to facilitate the exchange of information with a foreign concerned authority.

2- Whenever the Directorate provides information under this Article to a foreign counterpart, it shall obtain from that foreign authority a suitable declaration or undertaking that the information provided by the Directorate will only be used for the purpose for which it was sought, unless the foreign counterpart agency seeks and obtains the agreement of the Directorate for the information to be used for another purpose.

V. Customs Disclosure

Article 23

- 1- Any person who enters or leaves the Kingdom of Saudi Arabia in possession of currency, bearer negotiable instruments, gold bars, precious metals or stones or jewelry exceeding the value threshold set by the Implementing Regulation, or who arranges for the transportation thereof into or out of the Kingdom by cargo, courier, postal service or through any other means, shall declare to the General Directorate of Customs and the Directorate shall request additional information on the source and the purpose of the use.
- 2- The General Directorate of Customs shall seize the currency, bearer negotiable instruments, gold bars, precious metals or stones or jewelry for (72) hours in case of the suspicious of the ML or predicate offence including cases not exceeding the value threshold set in Sup (1) in this Article, and in case of violating the declaration obligation or the false declaration.
- 3- In the case of violating the declaration obligation or the false declaration and no suspicious in the ML or predicate offence, The General Directorate of Customs shall imposed a fine as clarified in the Implementing Regulation.
- 4- The General Directorate of Financial intelligence shall obtain all information that the General Directorate of Customs obtained.

- 5- The Implementing Regulation shall set forth rules and procedures related to declarations and the powers of General Directorate of Customs to implement the declaration obligations.

VI. Supervision

Article 24

Supervisory authorities shall have the following powers and duties to carry out their mandate:

- a. Collect information and other data from FIs, DNFBPs, and NPOs as well as applying appropriate supervisory measures, including on-site inspections and offsite measures;
- b. Compel FIs, DNFBPs, and NPOs to provide any information that the supervisory authority considers relevant to carry out its function under this Law and its Implementing Regulation, and take copies of documents and files, however and wherever stored;
- c. Carry out an anti-money laundering risk assessment for the sectors for which the authority has a supervisory mandate;
- d. Issue guidance, decisions and instructions, rules or any other instruments to FIs, DNFBPs, and NPOs in order to implement the provisions of this Law.
- e. Cooperate and Coordinate with competent authorities when sharing available or accessible supervisory information that is relevant to anti-money laundering supervision with any foreign counterpart, or carry out inquiries on behalf of any foreign counterpart, or request any such information or cooperation from a foreign counterpart;
- f. Verify that FIs, DNFBPs, and NPOs adopt and enforces measures consistent with this Law in relation to its foreign branches and majority owned subsidiaries to the extent permitted by the laws of the foreign country;
- g. Establish and apply effective fit and proper screening procedures for any person aiming to participate in the management or supervision of FIs, DNFBPs, and NPOs or for any person aiming to own or control, directly or indirectly, or becoming a beneficial owner of significant shares;
- h. Maintain statistics concerning any measure adopted and sanction imposed;

Article 25

Without prejudice to any stricter sanctions and subject to the procedures provided for in other laws, if the supervisory authority find that FIs, DNFBPs, and NPOs or any of their directors, board members, executive or supervisory management members failed to comply with any provision of this Law, its Implementing Regulation or relevant decisions or circulars, or any violation referred from other competent authority, the supervisory authority may impose one or more of the following measures:

1. Issue a written warning;
2. Issue an order to comply with a specific instruction;
3. Issue an order to provide regular reports on the measures taken to address the identified violation;

4. Impose a monetary fine of up to 5.000.000 riyals per violation;
5. Ban individuals from employment within the sectors for which the supervisory authority has competences for a period to be determined by the supervisory authority;
6. Restrict the powers of directors, board members, executive or supervisory management members, and controlling owners, including appointing one or more temporary controllers;
7. Dismiss or replace the directors, members of the Board of Directors or of executive or supervisory management;
8. Suspend, restrict or prohibit the continuation of the activity, business or profession or of certain business activities or products;
9. Suspend, restrict or revoke the license;

The supervisory authority should inform the General Director of Financial Intelligence about the actions taken or imposed sanction.

VII. Sanctions

Article 26

Whoever committing a crime of money laundering, as stipulated in Article 2 of the present Law, shall be subject to imprisonment for a period up to ten years and no less than two years, as well as a fine not exceeding five million riyals or both.

Article 27

Whoever committing a crime of money laundering, as stipulated in Article 2 of the Law, shall be subject to imprisonment for a period up to fifteen years and no less than three years, as well as a fine not exceeding seven million riyals or both if the crime accompanied by any of the following :

- 1- Commits the crime through an organized crime syndicate;
- 2- Uses violence or weapons
- 3- Occupied a public office and the crime is connected thereto or if such person abuses his/her powers or influence in committing the crime;
- 4- Trafficking in human beings.
- 5- Exploits persons or minors and the like;
- 6- Commits the crime through a correctional, charitable or educational institution or in a social service facility; or
- 7- Has a prior conviction in the Kingdom or abroad.

Article 28

1. A Saudi national who has served his term of imprisonment due to money laundering crime shall be barred from travelling outside the Kingdom for a period equal to the term of imprisonment served.
2. Non-Saudis shall be deported from the Kingdom upon execution of their penalty with no possibility of return to the Kingdom..

Article 29

The court may reduce the sentence of the convicted person as clarified in Article 30, if perpetrator

reports to authorities about the money laundering crime, before they have knowledge, other perpetrators to the crime, and if such reporting leads to arresting the perpetrators or seizing crime instrumentalities or proceeds.

Article 30

Penalties stipulated in Article 26 may be reduced as per the legal decided circumstances to be imprisonment for a period up to seven years and no less than one year, as well as a fine not exceeding three million riyals or both.

if the perpetrator of the offense provides competent authorities with information they would not have otherwise obtained so as to assist them in:

- a. preventing the commission of another money laundering offense or limiting the effects of the offense;
- b. identifying or prosecuting other perpetrators of the offense;
- c. obtaining evidence;
- d. depriving a criminal organization of funds over which the defendant has no right or control.

Article 31

- 1- Without prejudice to the criminal liability of a natural person, any legal person that commits a money laundering offense shall be punished by a fine of no more than 50 million riyals and no less than the equivalent of the double of full value of the funds that were the objects of the offense.
- 2- A legal person may also be prohibited permanently or temporarily from engaging in certain licensed activities, directly or indirectly, or be ordered to close down its offices, permanently or temporarily, that were used in conjunction with the commission of the offense, or an order be made to liquidate the business.

Article 32

The verdict may include publishing a summary of the verdict in local gazette issued at convicted premises, and on the criminal cost. In the case of no gazette issued at the convicted premises, it shall be in another gazette at the nearest area to the convicted premises, or published in another proper means, as per the type of crime, significance and its effect. The publication shall occurred after the final court verdict.

VIII. Confiscation

Article 33:

Without prejudice to the rights of third parties acting in good faith, in the event of a conviction for a money laundering or predicate offence, the competent Court shall issue an order to confiscate the following:

- a. Laundered funds;
- b. Proceeds of the crime, including proceeds intermingled with funds acquired from legitimate sources up to the value of the intermingled proceeds; and
- c. Instrumentalities.

2. The competent court shall order the confiscation of funds regardless of whether the funds are held or owned by the defendant or a third party. Funds may not be confiscated if a third party can establish that he/she acquired the funds by paying a fair price or in return for the provision of services corresponding to the value of such funds or based on other legitimate grounds, and that he/she was unaware of their illicit origin.

3. The competent court may invalidate or prohibit an activity, whether contractual or otherwise, if one or more of the parties knew or should have known that such an activity could prejudice the ability of the competent authority to recover funds subject to confiscation.

Article 34

The competent court shall order confiscation associated with money laundering not convicted in case of the court verdict is not issued due to the perpetrator death or escape or the difficulty of recognize him/her or in case of the absence.

Article 35

- 1- In cases where confiscation is not possible because the funds are no longer available for confiscation or cannot be located, the court shall order confiscation of any other funds owned by the convict in order to recover an amount that is equivalent in value.
- 2- The court shall issue a confiscation order of any other funds owned by the convict to complete the required amount of the confiscation if the extent to which the value of the funds confiscated falls short of the value of funds under Article 33.

Article 36

Unless other Law stipulates otherwise, confiscated funds shall accrue to the Public Treasury. These funds remain bearing any rights lawfully adjudicated in favor of third parties acting in good faith.

Article 37

As per the provisions set out in this law, when funds, proceeds of crime, used instruments are convicted or intentionally were to use or to recover, the competent authority has the authority to deal with them according to the law, or share them with countries that are signatories with the Kingdom to valid agreements or treaties.

IX. International Cooperation

Article 38

Competent authorities may exchange information with and make inquiries or investigation on behalf of foreign counterparts in countries that are signatories with the Kingdom to valid agreements, , or on the basis of reciprocity. This shall be done pursuant to applicable statutory procedures, without prejudice to the national sovereignty of the country or provisions and customs related to confidentiality of information.

Article 39

Upon request of a competent court or authority in another country which is a signatory with the Kingdom to a valid agreement or on the basis of reciprocity, the competent authority may provide mutual legal assistance in relation to money laundering and predicate offense investigations and prosecutions and procedures, including but not limited to assistance with the tracing, seizure, recovery and confiscation of funds, or proceeds of crime or Instrumentalities related to the Money Laundering Crimes or predict offences, or the controlled delivery, according to laws in force in the Kingdom. The Implementing Regulation shall further prescribe the types of assistance that may be granted, and conditions that must be agreed by requesting country, and the procedures that must be applied.

Article 40

A final judgment providing for the confiscation of funds, proceeds or instrumentalities related to a money laundering or predicate offense issued by a competent court in another country which is a signatory to a valid agreement with the Kingdom or on the basis of reciprocity, may be acknowledged and enforced in the Kingdom if the funds, proceeds or instrumentalities subject of the judgment can be confiscated, in accordance with laws applicable in the Kingdom.

Article 41

The accused or convicted for Money laundering crime can be extradited from and to another country, which is a signatory with the Kingdom to a valid agreement or on the subject to the principle of reciprocity . In case of the rejection of the extradition, the competent courts in the kingdom undertake the trial and may benefit from the investigations were provided by the requested country. The Implementing Regulation shall further prescribe the conditions for extradition.

Article 42

The Permanent Committee for Mutual Legal Assistance shall be responsible for receiving mutual legal assistance requests in all money laundering and associated predicate crimes.

X. Concluding Provisions

Article 43

- 1- the Public Prosecution, either upon its own motion or upon request by the criminal investigating officer, may order that any person or FIs -through the supervisory authority- or DNFBPs or NPOs provide records, document or information. The requested entity shall execute the order as specified in the order, accurately, and without delay. The Implementing Regulation of this law shall clarify the relevant mechanisms.
- 2- Whoever has been served with an order under Sup (1) in this Article shall not disclose to

any person the existence or operation of the order, except where such a disclosure is made to other staff or members of the management for the purpose of obtaining advice or determining steps to comply with the order.

Article 44

- 1- The Public Prosecution, either of its own motion or upon request by the Directorate of financial intelligence or the criminal investigating officer, based on a suspicion of money laundering or a predicate offence, may order the provisional seizure of funds that are or may become subject to confiscation for a period not exceeding 60 days. An order under this Article shall be issued and executed without prior notice to the party concerned. An order under this Article may be extended for a longer period pursuant to a judicial order from the competent court but shall not prejudice the rights of bona fide third parties.
- 2- Upon the issuance of the provisional seizure, the Public Prosecution may determine that the funds subject to the order remain under the management of the person that held an interest in it at the time of issuance of the order or a third party, or such funds be transferred by order from the competent court to a designated authority if this is deemed necessary to mitigate the risk of dissipation of the funds.

Article 45

Without prejudice to the provisions of the criminal procedures law, the Public Prosecution may, at its own motion or upon the request of the criminal investigating officer, may issue a warrant permitting the criminal investigating officer or the investigator to enter houses, offices or the Headquarters of the reporting entity to search for, detect and arrest persons, or to search for and seize funds, properties, documents, evidence or information relating to a predicate crime or a ML crime at any time during the period specified in the Search Warrant. In case of urgency, there is no need to obtain a warrant, provided that a report will be written indicating the reasons and grounds of urgency. The order under this Article should be made ex parte and without prior notice to the party concerned. The Public Prosecution will inform the supervising authority of the reporting entities on the procedures taken in this regard.

Article 46

Without prejudice to the provisions of the criminal procedures law, the Public Prosecution may, at its own motion or upon the request of the criminal investigating officer, may issue a reasoned order permitting the criminal investigating officer or the investigator to monitor, control, record, intercept, seize and have access to all forms of evidence, records and messages including letters, publications, parcels, all forms of communications, telephonic conversations, information and data saved in computers, as specified in the Order, whether for a predicate crime or a ML crime. The order under this Article should be made ex parte and without prior notice to the party concerned .

Article 47

The competent court shall have jurisdiction to decide on all crimes provided for in this Law.

Article 48

The Public Prosecution shall investigate and prosecute crimes stipulated in the Law at the competent court, and it shall issues guidelines and instruction to the competent authorities under its supervision by the criminal procedures law.

Article 49

Criminal investigating officers shall have the responsibility of searching, enquiring, and gathering evidence in relation to crimes stipulated in this law each within their own purview as well as criminal and administrative investigation aimed at identifying, tracing or securing proceeds of crime or instrumentalities.

Article 50

The President of the State Security, upon agreement with the Minister of Finance and the Attorney General of the Public Prosecution, shall issue the Implementing Regulations of this Law within no more than ninety days from the date of its issuance.

Article 51

- 1- This Law shall supersede the Anti-Money Laundering Law, issued by Royal Decree No. M/31, dated 11/5/1433H.
- 2- This Law shall supersede all provisions conflicting with it.
- 3- This Law shall come into force one day from the date of its publication in the Official Gazette.